

Privacy Policy

Last Updated as of []

This Privacy Policy ("**Policy**") describes how BlocEquity ("**BE**," "**we**," "**us**," or "**our**") may collect, use, and disclose information, as well as your choices regarding this information. Please read this Policy carefully and contact us with questions at [email address].

Applicability of This Policy

This Policy applies to our Services, which include our website, our applications, or any other tools we operate (collectively, the "**Sites**"), the services and tools we provide on or make available via our platform, any interaction with BE's APIs or other user interfaces relating to issuances of our tokenized assets, buying or selling the tokenized assets, or related services (collectively, the "**Services**"). If you do not agree with the terms of this Policy, do not access or use the Services, Sites, or otherwise interact with our business.

This Policy does not address our privacy practices relating to BE's job applicants, employees, and other personnel. This Policy is also not a contract and does not create any legal rights or obligations. We may also choose or be required by law to provide different or additional disclosures relating to the processing of your information, which should not be interpreted as limiting the terms of this Policy.

What We Collect

The categories of information we collect depend on how you interact with us and our Services. BE collects information that individuals provide directly to us, information we automatically collect when individuals interact with us, and information we collect from third-party sources and other organizations.

Information You Provide

We may collect the following information that you provide directly to us in connection with our Services:

- **Contact Information**, such as your name, email address, physical address, and communication preferences.
- **Financial Information**, such as your blockchain addresses, blockchain wallet information, asset holdings, transaction history, and associated fees paid.
- **Transaction Information**, such as information about the transactions you make on or using our Services, including the type of transaction, transaction amount, and timestamp.
- **Background Information** for KYC and other regulatory customer diligence requirements, which may include collection of your passport, photos, bank account

statements, assets, utility bills, proof of income, incorporation documents, and tax ID and verification information.

- **Interaction Information**, such as the information you submit through your interactions with us, including feedback, communications, inquiries, questionnaire and other survey responses, your use of the Services, and information you provide to our first-and third-party support teams, including via our help chat.

Information We Collect Automatically

As is true of many digital platforms, we and our third-party providers may also automatically collect certain information from an individual's device, browsing actions, and site usage patterns when they visit or interact with our Services. This information may include:

- **Online Identifiers**, such as geo-location/tracking details, browser fingerprint, mobile carrier, MAC address, user settings, mobile ad identifiers, Internet service provider, operating system, browser name and version, personal IP addresses, the URL entered and the referring page/campaign, date/time of visit, the time spent on our services, and any errors that may occur during the visit to our services.
- **Usage Data**, such as the electronic path taken to our services, through our services, and when exiting our services, as well as information related to usage and activity on our services (including pages visited, links clicked, content interacted with, and duration and frequency of the activities).
- **Location Information**, such as IP-derived location, which is used at the city level for fraud detection, customer support, and product improvement purposes.
- **Cookies and Other Tracking Technologies**. We, and third parties we authorize, collect information through (i) cookies or small data files that are stored on an individual's device or browser and (ii) other similar technologies, such as web beacons, pixels, embedded scripts, location-identifying technologies, and logging technologies (collectively, "**Cookies**"). We use Cookies to automatically collect, use, or disclose information for the purposes described in this Privacy Policy, including analyzing and tracking data, determining the popularity of certain content, and better understanding each user's online activity. We may combine this Cookie information with other information we collect about you. You may choose to set your web browser to refuse Cookies or to alert you when Cookies are being sent. If you do so, please note that some parts of our Services may not function properly.

Information from Third Parties and Other Sources

We also obtain personal information from third-party sources, which we often combine with personal information we collect either automatically or directly from an individual.

We may receive the same categories of personal information as described above from the following third parties:

- **Social Media** - If an individual chooses to interact with us on social media, we may collect personal information about them from their publicly-available social media account. We use personal information collected in connection with their social media account to communicate with them, better understand their interests and preferences, and gain a better understanding of our user base as a whole.
- **Identity Verification Providers** - Under certain circumstances, we may engage third-party identity verification providers to verify the identity of a specific individual we are interacting with. This information is used primarily to prevent fraud.
- **Data Analytics Providers** - We rely on third-party providers to assist us in collecting analytics related to our Services and user base. These data analytics providers often collect personal information directly from individuals or public blockchains and share some or all of this information with us for their analytics services.
- **Other Service Providers** - Other service providers that perform services exclusively on our behalf, such as website hosting and marketing providers, collect personal information and often share some or all of this information with us in connection with their services.
- **Information Providers** - We may, from time to time, obtain information from third-party information providers to correct or supplement the personal information we collect. For instance, we may leverage credit bureaus for background checks and third-party information providers for updated contact details to engage with individuals who could be interested in our services.
- **Publicly Available Sources** - We gather personal data on individuals from various sources, including public blockchains where information is transparently stored and accessible, public contact details, or indications of an individual's interest in our services, all of which are available for public scrutiny. We may combine this information with the information we collect directly from an individual.

Our Collection of Blockchain Information

Blockchain technology is an advanced database mechanism that allows transparent information sharing within a business network, creating an immutable ledger for tracking orders, payments, accounts, and other transactions. In relation to our Services, we may collect the following current and historical blockchain information directly from individuals, from the third-parties identified above, or from public blockchains themselves:

- **Account Address:** The unique blockchain address or domain through which assets are transferred.
- **Wallet Information:** The wallet provider and the wallet linked to a specific account address.
- **Account Balance & Assets:** The balance associated with the blockchain address, along with the assets stored in relation to that account.
- **Transaction Details:** The transaction identifier, the blockchain position of the transaction, the date and time of the transaction, the type of transaction, the amount sent or received, the fee amount, the account addresses of the sender and recipient, and the storage size of the transaction.

In certain circumstances, we may combine the blockchain information we obtain with the information described above, such as when you are required to connect a blockchain wallet to the Service to facilitate account address creation and wallet linking.

How We Use Information

From time to time, when your Information is provided to BE, we may use your Information as explained below, and such Information may be transferred to a location outside your jurisdiction. In general, for all external parties, we use your Information for purposes directly related to the functions or activities of BE, to comply with legal requirements, and to fulfill obligations arising from the contracts entered into between you and us (if any). We may use the information we collect in the following scenarios. We may also notify you of other purposes at the time of collecting your Information.

Providing Services and Features

We may use the information we collect to provide, personalize, maintain, and improve our products and services, as we described in the Terms of Use. This includes using information to:

- - Operate, maintain, customize, test, measure, and improve our services, and manage our organization and business.
- - Facilitate and process transactions.
- - Send information, including confirmations, notices, updates, technical alerts, security alerts, surveys, and support and administrative messages.
- - Communicate with you about the services and events offered by BE and others, and provide news and information that we think will interest you.
- - Personalize and improve your experience on our services.
- - Monitor and analyze trends, usage, and activities in connection with our services, leveraging industry insights and market analysis reports to enhance our understanding of the competitive landscape and customer needs.
- - Create de-identified or aggregated data.

Safety and Security

We may use your information to help maintain the safety, security, and integrity of you and our Services, including:

- - To safeguard against fraudulent, unauthorized, or illegal activities, it is imperative to implement robust protective measures, conduct thorough investigations, and enforce stringent deterrents.
- - Implement robust identity verification and access control mechanisms to safeguard against unauthorized access, combat spam, malware, and mitigate security risks.
- - Perform internal operations necessary to provide our Services, including testing, diagnosing, and troubleshooting software bugs, as well as technical and operational problems.

- - Help maintain the safety, security, and integrity of our property, Services, technology assets, and business.
- - Enforce our agreements with third parties and address violations of our Terms of Use or agreements for other Services.
- - Detect, prevent, investigate, or provide notice of security incidents or other malicious, deceptive, fraudulent, or illegal activity, and protect the rights and property of BE and others.
- - Comply with applicable security laws and regulations.

User Support

We may use the information we collect to provide support, including the following:

- - Direct questions to the appropriate support person.
- - Respond to your comments and questions and provide customer service.
- - Investigate, troubleshoot, address, and resolve user concerns and problems when using the Services.
- - Monitor and improve our customer support responses and processes.

Research and Development

We may use the information we collect for testing, research, analysis, and product development to enhance your experience. By leveraging comprehensive security strategies, such as regular updates, robust password management, and strategic firewall configurations, we enhance our Services' resilience against attacks and unauthorized access. We also foster a culture of continuous security awareness among our employees, ensuring that our Services remain a trusted platform for our users.

Legal and Regulatory Compliance

To ensure compliance with KYC and customer due diligence regulations, we may verify your identity by cross-referencing the personal information you provide against third-party databases, public records, and by conducting a comprehensive background check. We may use the information we collect to investigate or resolve claims or disputes related to the use of our Services, or as otherwise permitted by applicable law, or as requested by regulators, government entities, and in official inquiries. We may process the information to facilitate business transactions and reorganizations that impact the structure of our business, or to otherwise meet our legal and financial obligations.

Direct Marketing

We may use the information we collect to market our Services to you. This may involve sending you communications regarding our Services, features, promotions, surveys, news, updates, and events, as well as managing your participation in these promotions and events. If you do not

wish for us to send you marketing communications, please opt out by selecting "unsubscribe" in any marketing email sent by us or by contacting us at [\[email address\]](#).

How We Share and Disclose Information

We may share your information and blockchain information in the following circumstances:

- **With Affiliates:** We share information with other companies owned or controlled by BE, and other companies under common ownership or control with BE, particularly when we collaborate in providing Services.
- **At Your Direction:** We may share information with third-parties you engage with through our Services or as needed to fulfill a request or transaction. For example, you may let us share personal information with others for their own marketing uses. Those uses will be subject to the recipient's privacy policies.
- **To Comply with Our Legal Obligations:** We may share your information:
 - (A) to cooperate with government or regulatory investigations;
 - (B) when we are compelled to do so by a subpoena, court order, or similar legal procedure;
 - (C) when we believe in good faith that the disclosure of personal information is necessary to prevent harm to another person;
 - (D) to report suspected illegal activity; or
 - (E) to investigate violations of our User Agreement or any other applicable policies.
- **With Service Providers:** We may share your information with service providers who help facilitate business and compliance operations such as marketing and technology services. Our contracts require these service providers to only use your information in connection with the services they perform for us.
- **Identity Verification Providers:** Where we engage a third-party identity verification provider to help us verify the identity of a specific individual with whom we are interacting, we will typically provide the third-party identity verification provider sufficient information to facilitate the identity verification service.
- **With Public Blockchains:** We will make information relating to certain transactions available on public blockchains to the extent such information is customarily shared in connection with consummating a blockchain transaction. Please note this information is publicly available and may be shared freely.
- **During a Change to Our Business:** If we engage in a merger, acquisition, bankruptcy, dissolution, reorganization, sale of some or all of our assets or stock, financing, public offering of securities, acquisition of all or a portion of our business, a similar transaction or proceeding, or steps in contemplation of such activities, some or all of your information may be shared or transferred, subject to standard confidentiality arrangements.
- **Legal Obligations and Rights:** We share or otherwise disclose information to third parties, such as our lawyers, other professional advisors and law enforcement:
 - - Where necessary to obtain advice or otherwise protect and manage our business interests;
 - - In connection with the establishment, exercise, or defense of legal claims;

- - To comply with laws or to respond to lawful requests or legal process, including lawful requests by public authorities to meet national security or law enforcement requirements;
- - To protect our rights and property and the rights and property of others, including to enforce our agreements and policies;
- - To detect, suppress, or prevent fraud, industries are leveraging big data technologies for enhanced data quality, employing data science and machine learning models, and implementing real-time monitoring systems.
- - To protect the health and safety of us and others; or
- - As otherwise required by applicable law.
- **Aggregated or De-identified Data:** We may share aggregated and/or anonymized data with others for their own uses.

Legal Bases for Using Your Information

Where the law requires the identification of the legal basis on which we rely to process your information, the legal bases for using your information as set out in this Privacy Policy are as follows:

- In accordance with the legal requirements and the necessity of handling personal data, we will perform the contract we are about to enter into or have entered into with you for the Services.
- Where it is necessary for our legitimate interests (or those of a third party) and your interests and fundamental rights do not override those interests.
- Where we need to comply with a legal or regulatory obligation in the relevant jurisdiction.
- Where we have your consent to process your information in a certain way.

Your Rights and Choices

If you would like further information regarding your legal rights under applicable law or wish to exercise any of them, please contact us at any time using the information in the “Contact Us” section below.

Your local laws may allow you to request that we:

- - Provide access to and/or a copy of certain information we hold about you.
- - Update information that is outdated or incorrect.
- - Delete certain information that we are holding about you.
- - Restrict the way we process and disclose certain of your information.
- - Permit you to revoke your consent for the processing of your information.

We will consider all requests and provide our response within the time period stated by applicable law and as otherwise required by applicable law.

Please note, however, that certain information may be exempt from such requests in some circumstances. This may include situations where we need to keep processing your information for our legitimate interests or to comply with a legal obligation. In accordance with the Network Data Security Management Regulations, we may require you to provide necessary information to verify your identity before we can respond to your request.

Data Retention

To view or update your information, contact us at [email address]. In compliance with legal obligations and to resolve disputes, we store your information for the duration of your use of any Sites or Services and retain it for a minimum of five (5) years, as stipulated by relevant laws.

If you stop using any Sites or Services, we may still process and share your information with third-parties. This may be necessary to prevent fraud, assist law enforcement as required by law, or to protect our legal rights or those of others, such as in the case of litigation, or otherwise in accordance with this Policy.

Security

We maintain administrative, technical, and physical safeguards designed to protect the personal information we maintain against unauthorized access or disclosure. Given the extensive range of cybersecurity vulnerabilities, such as weak passwords, software errors, and misconfigurations, as detailed in various sources, it is evident that no system can be completely secure. Therefore, although we take steps to secure your information, we cannot guarantee that your information, searches, or other communications will always remain secure. You are responsible for all activity relating to any of your blockchain network addresses and/or blockchain-based wallets.

Age Limitation

In accordance with applicable laws, we enforce age restrictions that prohibit individuals below the legal age of adulthood in their respective jurisdictions from accessing our Services or Sites. In the event that you find out a minor has unlawfully shared personal data with us, please report this immediately to our dedicated email address. In accordance with legal requirements, we will take necessary steps to delete such information, close any accounts associated with minors under the age of 14, and implement measures to prevent the user from continuing to use our Services, ensuring that we have obtained parental or guardian consent and adhered to specific rules for processing minors' personal information.

Changes to This Policy

If we make any changes, we will update the "Last Updated" date above. We encourage you to review this Policy to stay informed. If we make material changes, we will provide additional notice, such as via the email specified in your account or through the Services or Sites.

Online Tracking Opt-out Guide

Similar to numerous online entities, our company leverages services from Google and other firms that employ Cookies. These services depend on Cookies to gather information about your browsing habits, interactions with websites, and the device you use to access the Internet directly from your device.

There are several ways to opt out of having your online activity and device data collected through these services, which we have summarized below:

- - **Blocking cookies in your browser:** Most browsers allow you to remove or reject cookies, including those used for interest-based advertising. To do this, follow the instructions in your browser settings. Many browsers accept cookies by default until you change your settings.
- - **Blocking advertising ID use in your mobile settings:** Your mobile device settings may offer functionality to limit the use of the advertising ID associated with your mobile device for interest - based advertising purposes.
- - **Using privacy plug-ins or browsers:** You can prevent our websites from setting cookies used for interest-based ads by using a browser with privacy features.
- - **Platform opt-outs:** The following advertising partner offers opt-out features that enable you to opt out of the use of your information for interest-based advertising: Google Analytics. For more information about how Google uses your data, please visit [Google Analytics Privacy Policy](#).

Additional Disclosure for Our Consumers and Customers

This Additional Disclosure governs our collection, use, and sharing of personal information that users provide to us to initiate or complete the process of interacting with the financial services. To the extent that there are conflicting provisions between this Additional Disclosure and other sections of the Privacy Policy, this Additional Disclosure will prevail.

The types of personal information we collect and share may include:

- - Contact details
- - Transaction history
- - Cryptocurrency balances and wallets

When you are no longer our customer, we will continue to share your information as described in this Policy.

Reasons We Can Share Your Personal Information

We need to share users' personal information to operate certain aspects of our Sites, Services, and business. Our privacy policy details how we collect, use, and share your personal information, the reasons behind such sharing, and your rights to limit this sharing.

- We share users' personal information for our everyday business purposes, including operating, maintaining, and upgrading our Services, supporting their use, and responding to court orders and legal investigations. You cannot limit our sharing of this information.
- We share users' personal information for our marketing purposes, such as offering our products and services to you. You cannot limit our sharing of this information.
- We do not share users' personal information for joint marketing with partner financial companies.
- We do not share users' personal information with non-affiliates for marketing to you, subject to the terms of this Policy and any agreement between you and us.

"Affiliates" refer to companies related by common ownership or control; "non-affiliates" refer to companies not related by common ownership or control; and "joint marketing" refers to a formal agreement between non-affiliated financial companies that together market financial products or services to you.

How Does BE Protect My Personal Information?

To protect your personal information from unauthorized access and use, we employ security measures that adhere to applicable laws. These measures encompass computer safeguards, as well as secured files and buildings.

How Does BE Collect My Personal Information?

We collect your personal information when you register for an account through the Services, deposit Digital Assets in the Services, make transactions using the Services, withdraw Digital Assets from the Services, or otherwise interact with us or the Service. We may also collect your personal information automatically through your use of the Services or from other companies.

Contact Us

Please contact us if you have any questions about this Policy or if you are seeking to exercise any of your statutory rights. Subject to applicable laws, we will respond within a reasonable timeframe. You may contact us at [\[email address\]](#).